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CASE #	CASE NAME	HEARING NAME
CVRI2500499	DOE vs KAIZEN COLLISION CENTERS, INC.	MOTION FOR LEAVE TO AMEND THE COMPLAINT

Tentative Ruling: Plaintiffs Christian Doe, Brian Doe, and Daniel Doe's (Plaintiffs) Motion for Leave to File a Second Amended Complaint ("SAC") is granted. Plaintiffs must file its separate amendment within 10 days of this ruling.

Individual Defendants' Joinder in the Opposition is denied.

Under California Code of Civil Procedure sections 473(a)(1) and 576, trial courts possess broad discretion to permit a party to amend any pleading at any stage of the proceedings "in furtherance of justice". California courts have established a strong "policy of great liberality in permitting amendments," meaning that a denial of a motion for leave to amend is rarely justified (*Rocky Mountain Export Co. v. Colquitt* (1960) 179 Cal.App.2d 204, 207; *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530).

If a motion to amend is timely made and does not prejudice the opposing party, it is an abuse of discretion to deny leave to amend, especially where the refusal deprives a party of the right to assert a meritorious cause of action (*Morgan v. Superior Court*, 172 Cal.App.2d at p. 530; *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048). In exercising its discretion, the Court generally does not evaluate the substantive merits of the proposed amendments, as the "preferable practice" is to permit the amendment and let the parties test its legal sufficiency afterward via a demurrer, motion for judgment on the pleadings, or other appropriate proceeding (*Kittredge Sports Co. v. Superior Court*, 213 Cal.App.3d at p. 1048).

Plaintiffs have fully complied with the procedural requirements of California Rules of Court, Rule 3.1324(b). In support of the motion, Plaintiffs' counsel, Andrew S. Levine, submitted a detailed declaration addressing the effect and necessity of the amendments, the discovery of new facts, and the reasons for the timing of this request.

Effect of the Proposed Amendments:

As set forth in the Declaration of Andrew S. Levine and the proposed SAC, the amendments have the following specific effects:

1. Addition of a New Plaintiff: The proposed SAC adds Raul Doe as a fourth plaintiff.
2. Raul Doe's Claims: The SAC asserts existing causes of action for Sexual Harassment (under Government Code section 12923) and Sexual Battery (under Civil Code section 1708.5) on Raul Doe's behalf, arising out of alleged unwanted sexualized physical contact by Defendant Brian Perez during Raul's employment at Kaizen.
3. Three New Causes of Action: The proposed SAC adds three related causes of action arising from the same general workplace environment and course of conduct:

- Intentional Infliction of Emotional Distress (IIED): Asserted on behalf of all four Plaintiffs against all Defendants.
 - Negligent Hiring, Retention, Supervision, and Training: Asserted on behalf of all four Plaintiffs against Defendant Kaizen and the Doe Defendants.
 - Wrongful Termination based on Constructive Discharge: Asserted on behalf of Brian Doe and Raul Doe against Defendant Kaizen and the Doe Defendants.
4. Correction of Statutory Citation: The amendment corrects the statutory citation for the existing sexual battery cause of action from Government Code section 12923 to Civil Code section 1708.5.

No existing defendants are added or dismissed, and no existing claims are withdrawn.

Necessity and Propriety of the Amendments:

Counsel's declaration establishes that these amendments are necessary and proper because Raul Doe's claims and the three new causes of action arise out of the same employment relationship, the same workplace, the same alleged harasser (Perez), and the same pattern of workplace misconduct. Specifically, the claims involve a series of related incidents where Perez allegedly made sexually charged comments and engaged in unwanted physical contact with male detailers and paint department employees.

Permitting these amendments in a single action serves the interests of judicial economy and avoids the substantial duplication of pleadings, depositions, expert witnesses, and trial testimony that would result from a separate lawsuit by Raul Doe (*Morgan v. Superior Court*, 172 Cal.App.2d at p. 527).

Timing and Discovery of New Facts

According to the Declaration of Andrew S. Levine, the facts prompting this amendment were developed during ongoing investigation and discovery after the First Amended Complaint was filed on July 21, 2025.

- On or about October 31, 2025, counsel obtained a video capturing Defendant Perez physically touching Raul Doe in an inappropriate manner at the workplace.
- Counsel promptly shared this video with opposing counsel on the same day.
- Thereafter, counsel was required to investigate the incident further, communicate with Raul, evaluate his potential claims, and confirm his willingness to participate in this action.
- Raul Doe then timely filed an administrative complaint with the California Civil Rights Department (CCRD) and received a Right-to-Sue notice dated January 8, 2026.

Reasons the Request Was Not Made Earlier

Counsel maintains that they acted diligently and did not delay unreasonably. Immediately after securing the Right-to-Sue notice, counsel initiated the meet-and-confer process. On January 16, 2026, counsel emailed Defendants' attorneys requesting a stipulation to file the SAC. Extensive email correspondence ensued between January and February 2026, wherein Defendants' counsel (Kalli Sarkin and Elizabeth Martin of O'Hagan Meyer LLP) requested a redlined draft.

Plaintiffs' counsel responded on February 11, 2026, requesting an indication of whether Defendants would resist the addition of Raul before spending extensive hours drafting. After it became clear that a stipulation could not be reached, Plaintiffs filed this formal motion to ensure all closely related claims could be heard together.

Lack Of Prejudice To Defendants

Defendant Kaizen opposes the motion, claiming that they will suffer substantial prejudice because discovery is substantially complete, the existing Plaintiffs' depositions have been taken, and trial is scheduled for March 12, 2027. The Individual Defendants joined in these arguments.

The Court finds that prejudice to Defendants is entirely lacking, particularly given the current posture of this case:

1. Substantial Time Before Trial: This motion is heard in August 2026, and the trial is not scheduled until March 12, 2027. With more than seven months remaining before trial, there is ample time to conduct targeted discovery regarding the new claims and Raul Doe.
2. Prior Notice of Raul Doe's Claims: Defendants cannot claim surprise or "eve of trial" ambush (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487-488). Defendants have possessed or been aware of the video involving Raul Doe since October 31, 2025. Additionally, the operative First Amended Complaint already alleged that Perez repeatedly subjected male employees to unwanted touching. Raul's claims simply reinforce this existing theory.
3. The Addition of Preparation Costs and Legal Theories is Not Legal Prejudice: Under California law, the fact that an amendment involves a change in legal theory, or will cause a more favorable result for the plaintiff, or adds preparation expenses does not constitute prejudice (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490). "Evidence of disputed facts is not prejudice".
4. Opportunity for Discovery and Pleading Challenges: Defendants retain a full and fair opportunity to test the legal sufficiency of the new claims via a demurrer or motion for judgment on the pleadings (*Kittredge Sports Co. v. Superior Court*, 213 Cal.App.3d at p. 1048). Any argument by Defendants that Raul's wrongful termination or negligent hiring claims are "futile" because they are time-barred is premature and better addressed through responsive pleadings.
5. Reopening of Discovery: To ensure absolute fairness, the Court will permit Defendants to conduct targeted discovery regarding Raul Doe and the new causes

of action, including taking Raul's deposition and re-deposing the existing Plaintiffs, if necessary, on the new claims.

Denial Of The Individual Defendants' Joinder Motion

The Individual Defendants, Brian Perez and Michael Vu, filed a Joinder in Defendant Kaizen's Opposition on August 14, 2026, requesting that the Court deny Plaintiffs' motion for leave to amend. They argue that they are similarly situated to Kaizen, that Plaintiffs lacked diligence, and that their counsel was unavailable the week of August 24, 2026.

The Court DENIES/OVERRULES the Individual Defendants' Joinder to the extent they seek to block the filing of the SAC. As discussed above, California's liberal amendment policy strongly favors resolving cases on their merits, and there is no showing of "real prejudice" to any Defendant.

The fact that Individual Defendants' counsel had a scheduling conflict during the week of the hearing does not outweigh the strong policy in favor of amendment. The Court will ensure that the Individual Defendants are afforded a full opportunity to conduct discovery and file responsive pleadings.

1. Plaintiffs shall separately file and serve the proposed Second Amended Complaint in the form submitted as Exhibit A to the Levine Declaration within ten (10) calendar days of service of this Order.
2. Defendants shall file and serve responsive pleadings within thirty (30) days of service of the Second Amended Complaint.
3. The parties shall meet and confer regarding a schedule to conduct targeted discovery regarding Raul Doe and the new causes of action.

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CASE #	CASE NAME	HEARING NAME
CVRI2505971	GUTIERREZ vs GENERAL MOTORS LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling: Plaintiff's Motion for Attorney's Fees is granted in the amount of \$18,205.00.

Under Civil Code § 1794(d) (Song-Beverly Act), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Here, the parties apparently settled with the court to decide fees.

The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney's fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed.